Supreme Court Judgement: It invalidated Section 14 of the impugned Preventive Detention Act (1950) on the ground that it violates the fundamental right guaranteed under Article 22. It said that the omission of this section will not change the nature or the structure or the object of the legislation. Therefore, it declared the rest of the Act as valid and effective. Further, it held that the expression 'personal liberty' under Article 21 means liberty of the physical body, i.e., freedom from physical restraint or detention. Moreover, it ruled that Article 21 is a protection only against the executive and not against the legislature.

Impact of the Judgement: In this judgement, the Supreme Court has taken a narrow (restrictive) interpretation of the Article 21. In other words, the Supreme Court has adopted a 'textualist approach' in the interpretation of the constitution. It held that the word 'law' in Article 21 was used in the sense of state-made law and not in the sense of jus naturale i.e., the principles of natural justice. Hence, it declared that the expression 'procedure established by law' in Article 21 cannot be interpreted to mean the same thing as that of the American expression of the 'due process of law'. This declaration, in effect, amounted to holding that the protection under Article 21 is available only against arbitrary executive action and not from arbitrary legislative action. This judgement held the field for nearly three decades (1950 to 1978). This judicial interpretation reached its logical end in *A.D.M. Jabalpur* case[1] (1976). But, in *Maneka Gandhi* case[2] (1978), the Supreme Court overruled the above judgement by taking a wider interpretation of the Article 21.

Champakam Dorairajan Case (1951)

Name of the Case	: State of Madras vs. Champakam Dorairajan
Year of Judgement	: 1951
Popular Name	: —
Related Topic/Issue	: Communal reservation in admission to educational institutions
Related Article/Schedule	: 15, 29 & 46

Supreme Court Judgement: It affirmed the judgement of the Madras High Court. It struck down the order issued by the Madras Government (known as the Communal GO) that had provided for the proportionate reservation of seats in the government medical and engineering colleges for different communities with the object of promoting the educational interest of the backward classes under Article 46. It held that the communal GO was based on religion, race and caste and hence was violative of Articles 15(1) and 29(2). Further, it declared that the directive principles cannot in any way override or abridge the fundamental rights. It also stated that the directive principles have to conform to and run as subsidiary to the fundamental rights.

Impact of the Judgement: This judgement led to the insertion of a new Clause (4) in Article 15 by the 1st Amendment Act (1951). This clause permits the state to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the SCs and STs. In this way, the effect of this judgement was nullified.

Shankari Prasad Case (1951)